



Macro Real Estate Investing | MacroREI

Eugene, Oregon

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REAL ESTATE PURCHASE AND SALE AGREEMENT

Wholesale Assignment Contract | State of Oregon

1. PARTIES

Seller: _____ (“Seller”)

Purchaser: _____ **and/or assigns**
to _____ (“Purchaser”)

This Agreement is entered into as of _____ (day) of _____, 20____.

2. PROPERTY

Seller agrees to sell, and Purchaser agrees to purchase, the real property located at:

Address: _____

City: _____ **County:** _____

State: Oregon **ZIP:** _____

Legal Description (or as recorded):

The property is sold in its present “AS-IS” condition, including all fixtures permanently attached to the property.

3. PURCHASE PRICE & EARNEST MONEY

Purchase Price: \$ _____ (the “Purchase Price”),
payable as follows:

Earnest Money Deposit: \$ _____, due within _____ business days of
execution of this Agreement, to be held by _____
(Title Company / Escrow).

Balance at Closing: The remaining balance of the Purchase Price shall be paid in full at
closing via wire transfer, certified funds, or cash.

Earnest money is **non-refundable** except as expressly provided herein.

4. CLOSING DATE

Closing shall occur on or before _____ / _____ / 20____, or such other date as mutually agreed upon in writing by both parties (“Closing Date”). Time is of the essence.

Possession of the property shall be transferred to Purchaser at closing.

5. TITLE & CLOSING COSTS

Seller shall convey marketable title by _____ Deed, free and clear of all liens, encumbrances, and assessments except as otherwise stated herein. A title search shall be ordered through a licensed Oregon title company.

Closing costs shall be allocated as customary in _____ County, Oregon, unless otherwise agreed in writing. Each party shall pay their respective closing costs unless Seller agrees to contribute \$ _____ toward Purchaser’s closing costs.

6. PROPERTY CONDITION — AS-IS SALE

Seller makes no representations or warranties regarding the condition of the property. Purchaser acknowledges and agrees that the property is being purchased in its present “AS-IS, WHERE-IS” condition, with all faults, defects, and conditions, known and unknown. Purchaser has had, or has waived, the opportunity to conduct inspections.

Purchaser’s inspection period, if any, shall be _____ calendar days from execution. If Purchaser does not terminate in writing within said period, this contingency is waived.

7. ASSIGNMENT

Assignment Rights: Purchaser expressly reserves the right to assign this Agreement, or any interest therein, to any third party (“Assignee”) without the prior written consent of Seller. Seller acknowledges that Purchaser is a real estate investor and may assign this contract prior to closing. An assignment shall not release Purchaser from liability unless Seller expressly agrees in writing. Any assignment fee received by Purchaser is the sole property of Purchaser and is not subject to any reduction of the Purchase Price.

8. DEFAULT

Purchaser Default: If Purchaser fails to close through no fault of Seller, the earnest money deposit shall be forfeited to Seller as liquidated damages, and this Agreement shall be null and void.

Seller Default: If Seller fails to close through no fault of Purchaser, Purchaser shall be entitled to return of the earnest money deposit and may pursue any other legal remedies available under Oregon law, including specific performance.

9. GENERAL PROVISIONS

(a) Entire Agreement. This Agreement constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, and agreements.

(b) Amendments. Any modification of this Agreement must be in writing and signed by both parties.

(c) Governing Law. This Agreement shall be governed by the laws of the State of Oregon. Any disputes shall be resolved in _____ County, Oregon.

(d) Severability. If any provision of this Agreement is found to be unenforceable, the remaining provisions shall remain in full force and effect.

(e) Counterparts / Electronic Signatures. This Agreement may be executed in counterparts, and electronic or digital signatures shall be deemed valid and binding under ORS 84.001 et seq.

(f) Lead-Based Paint. If the property was built before 1978, Seller shall provide a Lead-Based Paint Disclosure as required by federal law prior to execution.

10. ADDITIONAL TERMS & CONDITIONS

SIGNATURES

By signing below, each party agrees to all terms and conditions set forth in this Purchase and Sale Agreement.

Seller Signature

Purchaser Signature (Macro REI / and/or assigns)

Seller Printed Name

Purchaser Printed Name

Date

Date

Seller Phone Number

Purchaser Phone / Email

If there are additional Sellers (e.g., multiple heirs), each must sign:

Additional Seller Signature (if applicable)

Date

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This form is for informational purposes. Consult a licensed Oregon real estate attorney before use in a transaction.

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